

CHAPTER 7. *

An Act to prohibit and restrict Children and Young Persons being taken out of the United Kingdom with a view to singing, playing, performing, or being exhibited, for profit.
[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) If any person causes or procures any child or young person, or, having the custody, charge, or care of any child or young person, allows such child or young person, to go out of the United Kingdom for the purpose of singing, playing, performing, or being exhibited, for profit, that person shall, unless, in the case of a young person, such a licence as is herein-after mentioned has been granted, be guilty of an offence against this Act.

Restrictions on children and young persons going abroad for the purpose of performing for profit.

(2) A constable or any person authorised by a justice may take to a place of safety any child or young person in respect of whom there is reason to believe that an offence under this section has been or is about to be committed, and the provisions of section twenty of the Children Act, 1908, shall apply as if such an offence were an offence mentioned in the First Schedule to that Act.

8 Edw. 7. c. 67.

(3) This section shall not apply in any case where it is proved that the child or young person was only temporarily resident in the United Kingdom.

2.—(1) A police magistrate may grant a licence in such form as the Secretary of State may prescribe, and subject to such restrictions and conditions as the police magistrate thinks fit, for any young person to go out of the United Kingdom for the purpose of singing, playing, performing, or being exhibited for profit, but no such licence shall be granted unless the police magistrate is satisfied—

Grant of licences.

- (a) that the application for the licence is made by or with the consent of the parent or guardian of the young person ;
- (b) that the young person is going out of the United Kingdom in order to fulfil a particular engagement ;
- (c) that the young person is fit for the purpose ;
- (d) that proper provision has been made to secure the health, kind treatment, and adequate supervision of the young person whilst abroad and his return to the United Kingdom at the expiration or revocation of the licence ;

(e) that a copy of the contract of employment or other document, showing the terms and conditions of employment, drawn up in a language understood by the young person, has been furnished to the young person.

(2) A licence under this section shall not be granted for more than three months, but may be renewed by a police magistrate from time to time for a like period, but no such renewal shall be granted unless the police magistrate is satisfied by a report of a British consular officer or other trustworthy person that the conditions of the licence are being complied with.

(3) Where a person applies for a licence or the renewal of a licence under this section, he shall, at least seven days before making the application, give notice thereof to the chief officer of the police for the district in which the young person resides or resided, and that officer may make a report in writing on the case to the police magistrate, or may appear or instruct some person to appear before the police magistrate hearing the application and show cause why the licence should not be granted or renewed, and the police magistrate shall not grant or renew the licence unless he is satisfied that notice has been properly so given. The notice given by the applicant shall be accompanied by a copy of the contract of employment or other document showing the terms and conditions of employment, which copy shall be sent by the chief officer of police to the police magistrate.

(4) The police magistrate to whom application is made for the grant or renewal of a licence under this section shall, unless he is satisfied that under the circumstances it is unnecessary, require the applicant to give such security, either by entering into a recognisance with or without sureties or otherwise, as he may think fit for the observance of the restrictions and conditions contained in the licence, and the recognisance may be enforced in like manner as a recognisance for the doing of some matter or thing required to be done in a proceeding before a court of summary jurisdiction is enforceable.

(5) In any proceeding for enforcing a recognisance under this section, a report of any British consular officer, and any deposition made on oath before a British consular officer and authenticated by the signature of that officer respecting the observance or non-observance of any of the conditions or restrictions contained in a licence granted under this Act, shall, upon proof that the consular officer or deponent cannot be found in the United Kingdom, be admissible in evidence; and it shall not be necessary to prove the signature or official character of the person appearing to have signed any such report or deposition.

(6) Where a licence is granted under this section, the police magistrate shall send to the Secretary of State for transmission

to the proper consular officer such particulars as the Secretary of State may by regulation prescribe, and every consular officer shall register the particulars so transmitted to him and perform such other duties in relation thereto as the Secretary of State may direct.

(7) A licence granted under this section may be revoked by the police magistrate at any time if he is satisfied that any of the conditions on which the licence was granted are not being complied with.

3.—(1) A person guilty of an offence against this Act shall, on summary conviction, be liable, at the discretion of the court, to a fine not exceeding one hundred pounds, or alternatively or in default of payment of such fine, or in addition thereto, to imprisonment with or without hard labour, for any term not exceeding three months: Penalties and proceedings.

Provided that, where the offender, by means of any false pretence or false representation, procures the child or young person to go out of the United Kingdom for any such purpose as aforesaid, he shall be liable on conviction on indictment to imprisonment, with or without hard labour, for any term not exceeding two years.

(2) Where proceedings are taken against any person under this Act in respect of any child or young person, and it is proved that the defendant caused or procured or allowed the child or young person to go out of the United Kingdom, and that the child or young person has, out of the United Kingdom, been singing, playing, performing, or been exhibited, for profit, the defendant shall be presumed to have caused or procured or allowed such child or young person to go out of the United Kingdom for that purpose unless the contrary is proved:

Provided that, where the contrary is proved, the court may order the defendant to take such steps as the court directs to secure the return of the child or young person to the United Kingdom, or to enter into a recognizance to make such provision as the court may direct to secure the health, kind treatment, and adequate supervision of the child or young person whilst abroad, and his return to the United Kingdom at the expiration of such period as the court may think fit.

(3) Proceedings in respect of an offence or for enforcing a recognizance under this Act may be instituted at any time within three months from the first discovery by the person taking the proceedings of the commission of the offence or (as the case may be) the non-observance of the restrictions and conditions contained in the licence.

(4) The wife or husband of a person charged with an offence under this Act may be called as a witness either for the prosecution or defence and without the consent of the person charged.

4. For the purposes of this Act, the expression "police magistrate" means the chief magistrate of the metropolitan Interpretation.

police courts or one of the other magistrates of the metropolitan police court in Bow Street, and the expression "chief officer of police"—

- (a) with respect to the city of London, means the Commissioner of the City Police;
- (b) elsewhere in England has the same meaning as in the Police Act, 1890;
- (c) in Scotland has the same meaning as in the Police (Scotland) Act, 1890;
- (d) in the police district of Dublin metropolis, means either of the Commissioners of Police for the said district;
- (e) elsewhere in Ireland, means a district inspector of the Royal Irish Constabulary.

53 & 54 Vict.
c. 45.
53 & 54 Vict.
c. 67.

Short title,
construction,
and com-
mencement.
10 Edw. 7.
& 1 Geo. 5.
c. 25.

5.—(1) This Act may be cited as the Children (Employment Abroad) Act, 1913, and shall be construed as one with the Children Act, 1908; and that Act, the Children Act (1908) Amendment Act, 1910, and this Act may be cited together as the Children Acts, 1908 to 1913.

(2) This Act shall come into operation on the expiration of one month from the passing thereof.

CHAPTER 8.

An Act to authorise the execution of instruments on behalf of the Commissioners of Woods.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Execution of
instruments on
behalf of Com-
missioners of
Woods.

1.—(1) Any deed or other instrument requiring to be executed by the Commissioners of Woods, or any two or one of them, or to which they or he are or is a party, may be executed by any permanent secretary of His Majesty's Office of Woods, Forests, and Land Revenues on behalf of the Commissioners of Woods, and if so executed shall be deemed to have been executed by the Commissioners of Woods, and shall have effect accordingly.

(2) Any deed or other instrument purporting to be so executed shall, until the contrary is proved, be deemed to have been duly executed by the Commissioners of Woods without proof of the official character or handwriting of the person appearing to have executed it.

Short title.

2. This Act may be cited as the Crown Lands Act, 1913; and the Crown Lands Acts, 1829 to 1906, and this Act may be cited together as the Crown Lands Acts, 1829 to 1913.